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TOE TO TOE
Delhi CM Arvind Kejriwal at a press meet in May

DELHI

ADVANTAGE AAP

Union list. The third list or the concurrent list outlines subjects on which both Parliament and the states can frame laws. As Delhi is not a full state, Article 239-AA has special provisions for it. Accordingly, it has no legislative or executive control over public order, police and land. These three remain under the jurisdiction of the Centre through the L-G. On May 21, 2015, the Union ministry of home affairs had issued a notification saying that the L-G would exercise control over 'services' too, the rationale being that the Delhi government did not have its own public services, like other states.

As a consequence, files related to postings or transfers were routed directly from the services secretary to the chief secretary, and then to the L-G, bypassing the Delhi government. The Kejriwal regime says this led to officers not being answerable for non-delivery of services to the people. AAP leaders claim officers routinely skip meetings and many of them don't even take their calls. "In one year, out of the 20 meetings called by the Delhi environment minister to prepare a winter pollution action plan, only one was attended by the environment secretary," AAP leader Jasmine Shah wrote in a newspaper column.

The SC verdict backed the AAP govt against the L-G on control of services, but the BJP-led Centre is unlikely to give up

The AAP regime moved the Delhi High Court against the 2015 notification, but it ruled in 2016 that matters relating to 'services' fell outside the purview of the Delhi assembly. Following this, a long legal battle ensued in the SC. On May 11, the apex court ruled that the Delhi government needs to have control over its bureaucrats, failing which the principle of collective responsibility would be adversely affected. "If the officers feel they are insulated from the control of the elected government they are serving, then they become unaccountable...," read the order.

This means the AAP government now has the authority to transfer and post officers, frame service rules and undertake any other measure for governance, including passing a law relating to services. Secretary More became the first target in this exercise of power. However, his alleged defiance is not the only hurdle the AAP government faces. The decision about which IAS officer gets posted to Delhi, and for how long, continues to be the Centre's prerogative. Besides, the Delhi government stays debarred from intervening on matters relating to police, public order and land—apart from police brass, that keeps the officer cadre of the Delhi Development Authority (DDA) and the Municipal Corporation of Delhi (MCD) beyond the AAP regime's purview.

AAP leaders express the apprehension that the Centre may promulgate an ordinance and later pass a law to bring services under its legislative and executive jurisdiction. The SC verdict does say that if Parliament enacts a law granting executive power to the L-G or the Centre on any subject that is within the domain of the National Capital Territory of Delhi (NCTD), their ruling can be modified. BJP IT cell in-charge Amit Malviya has already commented that Parliament might look at the option of enacting such a law.

Sources let on that the Centre will not give up its power to appoint Delhi's chief secretary, the link between the CM and the L-G. The Centre could invoke the 2021 amendment to the Government of National Capital Territory of Delhi (GNCTD) Act, 1991, which makes it incumbent on the elected government to refer almost every decision to the L-G. This amendment was passed as a supplement under Article 239-AA. Any further legislative action may result in another round of public spats and court battles between the two governments. The 20 million people of Delhi deserve better. ■